



SPONSOR: Sen. Huxtable & Rep. Snyder-Hall
Sens. Buckson, Cruce, Hansen, Pinkney, Poore, Sokola;
Reps. Burns, Griffith, Morrison, Ross Levin

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 83

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO THE RIGHTS OF RESIDENTS OF LONG-TERM CARE FACILITIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1121, Title 16 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1121. Resident's rights.

4 (b) It is the public policy of this State that the interests of the resident must be protected by a declaration of a
5 resident's rights, and by requiring that all facilities treat their residents in accordance with such rights, which must include
6 the following:

7 (19) ~~If married, a~~ Each resident shall enjoy privacy in visits by the resident's ~~spouse~~, spouse or domestic
8 partner and, if spouses or domestic partners are both residents of the facility, they shall be afforded the opportunity
9 where feasible to share a room, unless medically contraindicated.

10 (42) Each resident has the right to be free from discrimination on any basis protected under Chapter 45 of
11 Title 6 in the provision of care, treatment, or services.

12 Section 2. Amend § 1123, Title 16 of the Delaware Code by making deletions as shown by strike through and
13 insertions as shown by underline as follows:

14 § 1123. Notice to resident.

15 (a) The Department must prepare a notice that includes § 1121 of this title in its entirety. This notice must be
16 available in a language and format that is accessible to each resident or their authorized representative under § 1122 of this
17 title. Within 30 days of any revisions to § 1121 of this title, the Department must prepare and make available an updated
18 version of the notice.

19 Section 3. Amend § 1124, Title 16 of the Delaware Code by making deletions as shown by strike through and
20 insertions as shown by underline as follows:

21 § 1124. Staff training; issuance of regulations.

22 (a) Each facility shall provide appropriate staff training to implement the bill of rights under § 1121 of this title.
23 Within 60 days of any revisions to § 1121 of this title, each facility must provide appropriate staff training that addresses
24 the content of the revisions.

SYNOPSIS

This Act amends the long-term care resident's bill of rights to provide that residents may not be subject to discrimination based on their membership in a protected class. Specifically, this Act does the following:

1. Adds "or domestic partner" to the provision of the resident's bill of rights that gives spouses the right to visit and, if feasible and not medically contraindicated, to share a room if both are residents of the facility. This addition is being made to ensure that domestic partnerships entered into in other states are recognized.

2. Adds a non-discrimination provision to § 1121 of Title 16, which enumerates the rights of residents of long-term care facilities.

3. Requires the Department of Health and Social Services ("Department") to provide a revised notice of resident rights under § 1121 of Title 16 to each resident or the resident's authorized representative within 30 days of any changes to those rights.

4. Requires each facility to provide appropriate staff training whenever there is a revision to the resident's bill of rights within 60 days of that revision.

The purpose of this Act is to protect long-term care facility residents from discrimination and to ensure that residents, their representatives, and facility staff are aware of residents' rights.

Author: Senator Huxtable